



Education Act 1979

1979 CHAPTER 49

An Act to repeal sections 1, 2 and 3 of the Education Act 1976 and to make provision as to certain proposals submitted or transmitted to the Secretary of State under the said section 2. [26th July 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In the Education Act 1976—

section 1 (the comprehensive principle);

section 2 (submission of proposals for giving effect to comprehensive principle); and

section 3 (approval and implementation of proposals submitted under section 2),

are hereby repealed.

Abolition of
duty to give
effect to
comprehensive
principle.
1976 c. 81.

(2) The following provisions of this section apply to proposals submitted or transmitted to the Secretary of State under section 2 which have been treated, by virtue of a direction under subsection (1) of section 3, as if they had been submitted to him by a local education authority under subsection (1) or by the managers or governors of a voluntary school under subsection (2) of section 13 of the Education Act 1944 (establishing, maintaining, changing character of, enlarging or ceasing to maintain county school or voluntary school). 1944 c. 31.

(3) Where any proposals to which this subsection applies have been approved under subsection (4) of section 13, the Secretary

of State may, on the application of the local education authority, managers or governors concerned, revoke the approval.

(4) Where any proposals to which this subsection applies have not been so approved but public notice of them has been given under subsection (3) of section 13, the local education authority, managers or governors concerned may elect that, notwithstanding the repeals effected by subsection (1) above, the proposals shall continue to be treated as if they had been submitted to the Secretary of State under subsection (1) or (2) of that section; but no such election shall have effect unless it is made in writing to the Secretary of State before 31st December 1979.

Citation,
construction
and extent.

2.—(1) This Act may be cited as the Education Act 1979.

(2) The Education Acts 1944 to 1976 and this Act may be cited together as the Education Acts 1944 to 1979.

1944 c. 31.

(3) This Act shall be construed as one with the Education Act 1944.

(4) This Act does not extend to Scotland or Northern Ireland.